

Motion to Strike Portions of Plaintiffs' First Amended Complaint for Non-Compliance with CCP 871.24

Defendant's motion to strike is GRANTED WITH LEAVE TO AMEND.

Plaintiff failed to plead facts sufficient to support a claim for civil penalties pursuant to Code of Civil Procedure section 1794, subdivision (c) or (e).

The Court will sign the order lodged with the court on June 17, 2026.

Plaintiff is ordered to file an amended complaint within ten (10) days of this order.

26CV-02848 Marco Estrada vs Luis Soto

Order to Show Cause Re: Restraining Order

Appearance required. Proof of timely personal service was filed July 29, 2026.

26CV-02885 In the Matter of : Seven Thousand Nine Hundred Thirty-Four Dollars
(\$7,934.00) U.S. Currency

Status Conference

Appearance required.

26CV-02942 People vs. 1,627.00 U.S. Currency

Status Conference

Appearance required.

26CV-02961 People vs \$6,917.00 US Currency

Status Conference

Appearance required.

26CV-03083 Yamilet Cervantes, et al. vs Jose Dominguez, et al.

Petition for Minor's Compromise

The petition for approval of the minor's compromise is GRANTED.

The Court will sign the orders lodged with the court on July 14, 2026.

A status conference is set for December 2, 2026, at 8:15 a.m. in Courtroom 8, for confirmation of deposit of the minor's funds into the blocked account.

If Petitioner files the Acknowledgment of Receipt of Order and Funds for Deposit in Blocked Account (MC-356) at least five (5) court days before the hearing, the status conference will come off calendar.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Wednesday, August 05, 2026
10:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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21CV-01626	LVNV Funding LLC vs. Eligio Lazo
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Order to Show Cause Re: Dismissal - Notice of Settlement

On November 4, 2021, Plaintiff filed a notice of conditional settlement indicating that a request for dismissal would be filed no later than July 18, 2026. No request for dismissal has been filed. If no party appears to request more time to complete the settlement, the Court will dismiss the action pursuant to rule 3.1385(c)(2) of the California Rule of Court.

24CV-05051	Citibank, N.A. vs. Martha A Rivera
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Status Review of Settlement

Appearance by Plaintiff's counsel is required. If Plaintiff files a notice of settlement or request for dismissal prior to the hearing, the hearing will be vacated. On July 7, 2026, counsel for Defendant filed a case management statement indicating that the case has resolved.